

Present: Shri Hari Kishan, Senior Public Prosecutor for SFIO along with Shri Lokender Singh Raghav, Standing Government Counsel for the complainant
Accused No. 141 Aditya Sharda not present, represented by Shri Karan Kumar Gogna, Advocate (exemption filed)
Shri Kuldeep, Advocate for accused No. 116 Nitin Rathore

Case received by way of transfer. It be checked and registered.

Today the case is fixed for recording statement of Executing Constable regarding proclamation issued against accused persons named below.

Statement of ASI Sunil Kumar in respect of accused No. 138 Gurbir Singh Sandhu, accused No. 137 Shinder Pal Singh; statement of EHC Gajraj in respect of accused No. 173 Peeyush Aggarwal, accused No. 135 Sidharth Chauhan, accused No. 139 Naveen Kumar, accused No. 143 Sudhir Punia; statement of EHC Dinesh in respect of accused No. 116 Nitin Rathore, accused No. 133 Prakash Chandra Purohit, accused No. 172 Saurabh Tak; statement of Ct. Umed Singh in respect of accused No. 118 Jitender Vyas, accused No. 127 Abhey K Shah, accused No. 129 Deepak Shrimali, accused No. 170 Sudhir Mehta, accused No. 165 Shyam Bihari Gupta, accused No. 121 Paras Bholia; statement of EASI Laxman Singh in respect of accused No. 141 Aditya Sharda; statement of EHC Sunil in respect of accused No. 160 Shivraj Sharma, accused No. 152 Nazima Khan, accused No. 153 Shabbir Khan, accused No. 119 Vinay Kumpawat, accused No. 128 Manish Chaudhary, accused No. 162 Naveen Chaudhary recorded. Now the case is adjourned to date already fixed i.e. 02.07.2022 for presence of above accused persons.

Statement of Executing Constable EHC Rahul in respect of accused No. 177 Rajiv Kumar Rana recorded as per which accused is in custody. Now production warrant against accused No. 177 Rajiv Kumar Rana be issued in the name of Superintendent, District Jail, Jaipur with

the direction to produce the accused before the Court through VC on the date fixed.

Executing Constable in respect of accused No. 136 Akshat Singh not appeared. Notice to Executing Constable be issued for the date fixed i.e. 02.07.2022 with direction to appear before the Court for recording statement.

An application for seeking exemption of accused No. 141 Aditya Sharda from personal appearance of accused for today only moved. Learned counsel for the complainant has opposed the application. Proclamation against accused No. 141 Aditya Sharda has already been issued. Therefore, exemption as sought by accused cannot be granted. The application deserves dismissal and is dismissed accordingly.

Another application has been filed on behalf of accused No. 116 Nitin Rathore for not launching proceedings against accused under Section 82 Cr.P.C. This has also been opposed by learned counsel for the complainant. Vide order dated 25.03.2022, proclamation has already been ordered to be issued against him. Therefore, the application also deserves dismissal and is dismissed.

In pursuance of order dated 26.11.2019 passed by the Hon'ble High Court in CRM-M No. 48204-2019, Statement of approver Dushyant Singh Rathore has been recorded.

Statement of Approver Shashank Shekhar Singh Rathore, Rituraj Singh, Praveen Kumar, Jitesh Kumar, Nimesh Kumar Soni not recorded who are present today as Court time over. Now to come up on date fixed i.e. 02.07.2022 for recording statement.

(Dr.D.N.Bhardwaj)
Additional Sessions Judge,
Gurugram. UID No.HR-0100
07.05.2022